

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADV. N.N.P. SARDESAI AT
PANAJI, GOA**

In the matter of:

VIKRAM SHAH ...Claimant

V/s.

RIVA TRINDADE & 3 Ors. ...Respondents

REPLY ON BEHALF OF THE CLAIMANT

**TO THE APPLICATION DATED 12.06.2026 FOR PRODUCTION OF
ADDITIONAL DOCUMENTS FILED BY RESPONDENT NO. 2**

MAY IT PLEASE THIS HON'BLE TRIBUNAL:

The Claimant herein most respectfully states and submits as follows:

1. The Claimant has carefully perused the Application for Production of Additional Documents dated 12.06.2026 filed by Respondent No. 2 along with the supporting affidavit and craves leave to file the present reply seeking rejection of the said Application as being wholly misconceived and devoid of merit.

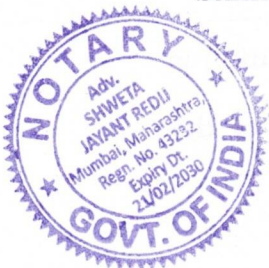
2. At the very outset, it is submitted that the present Application is nothing but a calculated and malafide attempt on the part of the



Respondent to delay the arbitral proceedings and to further complicate and protract the adjudication of the pending application under Section 17 of the Arbitration and Conciliation Act, 1996, filed by the Claimant. The timing of the Application, coming shortly after the rejection of the Respondents' application under Section 16 on 01.05.2026, itself betrays the dilatory intent.

3. It is most respectfully submitted that **the office of the AOP is situated in Goa and all the original documents, including the original records and documents pertaining to the AOP, have always been in the exclusive possession, custody, and control of late Mr. Pascoal Trindade since the very inception of the AOP and/or execution of the Articles of Association.** There is therefore no question of the documents having been "brought to the attention and notice of the Respondent only recently" as falsely claimed in paragraph 4 and 10 of the Application. The said plea is wholly untenable and lacks bona fides.

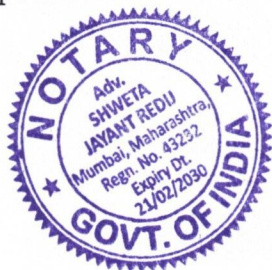
4. The documents sought to be produced, namely copies of the relevant extracts of the statement of account for the accounts held with the State Bank of India pertain to the accounts maintained by Late Mr. Pascoal Trindade and Respondent No. 2 herself. Being the account holders (or their legal heirs/representatives), the Respondents have always had ready access to, and have been in continuous possession of, the said bank statements and all related banking records since the date of the transactions. The same could



and ought to have been produced at the earliest opportunity, i.e., along with the Statement of Defence or even prior thereto. No satisfactory explanation has been offered for the belated production.

5. Similarly, the copy of the Affidavit in Evidence filed by the Claimant in Special Civil Suit No. 52/2013/A pending before the Hon'ble Civil Judge, Senior Division, at Panaji, Goa, as also the Order dated 13.10.2022 passed therein, are documents emanating from legal proceedings in which the Claimant and the Respondents (or their predecessors-in-interest) have been parties or closely connected. The Respondents have always been in a position to obtain, access and produce the same and cannot now be permitted to feign recent discovery or ignorance. The records of the said suit have been in the public domain and accessible throughout.

6. The vague and unsubstantiated excuse that the documents "were brought to the attention and notice of this Respondent only recently" is contradicted by the admitted fact that the Respondents have been in continuous and uninterrupted possession of all original records relating to the AOP, the subject properties, and the bank accounts since inception. This Hon'ble Tribunal may kindly note that despite the pendency of the arbitral proceedings since August 2024 and the filing of the Statement of Defence, no steps were taken earlier. The present Application is clearly an afterthought and a dilatory tactic aimed at derailing the expeditious resolution of the disputes.



7. It is further submitted that the present Application is designed to derail the timely adjudication of the disputes, particularly when the Claimant's application under Section 17 of the Arbitration and Conciliation Act, 1996 is pending before this Hon'ble Tribunal. Allowing the Application at this stage would inevitably result in further delay, additional costs, and unnecessary complication of issues, contrary to the very object of arbitration as an expeditious and cost-effective dispute resolution mechanism.

8. Without prejudice to the above, the Claimant most emphatically denies that the documents sought are essential, germane or material for the just adjudication of the dispute or the pending Section 17 application. The attempt to introduce old bank statements and court records at this belated stage, after the rejection of the Section 16 application, is nothing but an abuse of process aimed at shifting focus, buying time, and causing prejudice to the Claimant.

9. No prejudice whatsoever would be caused to the Respondents if the present Application is rejected. The Respondents have had ample opportunity throughout the proceedings to produce any documents they wished to rely upon. On the other hand, grave, irreparable prejudice, hardship and injustice would be occasioned to the Claimant if the Application is allowed, as it would result in further protraction of the proceedings, escalation of costs, and derailment of the arbitral process.



10. In view of the foregoing submissions, it is most respectfully submitted that the present Application deserves to be rejected outright as being devoid of merit, as an abuse of the process of this Hon'ble Tribunal, and as a dilatory tactic. The Respondents cannot be permitted to take advantage of their own laches and lack of diligence.

PRAYER

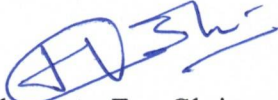
In view of the above, reject the Application for Production of Additional Documents filed by Respondent No. 2 as being misconceived, devoid of merit and as an abuse of process;

(a) Award costs of this Application to the Claimant;

AND FOR THIS ACT OF KINDNESS, THE CLAIMANT SHALL EVER PRAY.

Date: 7th July, 2026

Place: Panaji, Goa


Advocate For Claimant




Claimant

(Vikram Shah)

VERIFICATION

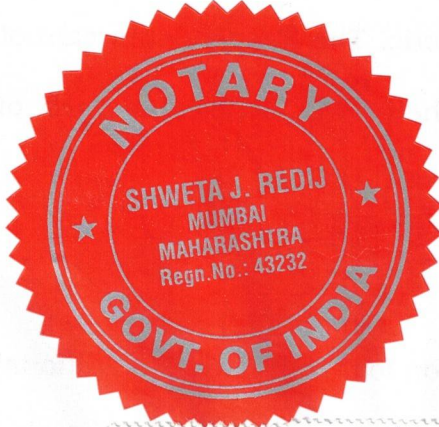
I, Vikram, Shah Age About 76, Occ. Business, R/o:- 28 Capri 9 Manav Mandir Road, Mumbai 400006 do hereby state on solemn affirmation that whatever stated in the foregoing paragraphs No. 1 to 10 are the

facts which are true and correct to my own knowledge and belief and
I believe the same is to be true.

Solemnly Affirmed at Mumbai }

This 7th Day of July 2026 }

Before me



BEFORE ME

Redij adv

SHWETA JAYANT REDIJ
Advocate & Notary, Govt. of India
Flat No. 6, B Wing, Gemini Apartments,
Baf Hira Nagar, Behind Radha Hotel,
Near Malwani Fire Brigade, Oil Road,
Malad (West), Mumbai - 95, Maharashtra
Regn. No. 43232

NOTED & REGISTERED

Page No. 101/01 Sr. No. 732

Notary Regd. No. 43232

Date 07 JUL 2026

ID / Aadhar / PAN / DL : 714563829307

Seen Org. / POA / Board Resol.: